

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X		
LUDGER BALAN,	)	
	)	COMPLAINT
Plaintiff,	)	
	)	JURY TRIAL DEMANDED
-against-	)	
	)	ECF CASE
THE CITY OF NEW YORK; POLICE OFFICER	)	
JOSE COFRESI, Shield Number 9315; JOHN	)	10 Civ. 1068 (DC)(MHD)
DOES; RICHARD ROES,	)	
	)	
Defendants.	)	
-----X		

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff LUDGER BALAN seeks relief for the defendants' violation of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. Section 1983, by the United States Constitution, including its First, Fourth and Fourteenth Amendments, and by the laws and Constitution of the State of New York. Plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of costs and attorneys' fees, and such other and further relief as this court deems equitable and just.

JURISDICTION

2. This action is brought pursuant to the Constitution of the United States, including its First, Fourth and Fourteenth Amendments, and pursuant to 42 U.S.C. §1983. Jurisdiction is conferred upon this court by 42 U.S.C. §1983 and 28 U.S.C. §§1331 and 1343(a)(3) and (4), this being an action seeking redress for the violation of the plaintiff's constitutional and civil rights.

3. The plaintiff further invokes this court's supplemental jurisdiction, pursuant to 28 U.S.C. §1367, over any and all state law claims and as against all parties that are so related to

claims in this action within the original jurisdiction of this court that they form part of the same case or controversy.

JURY TRIAL DEMANDED

4. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

VENUE

5. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. §1391 (a), (b) and (c).

NOTICE OF CLAIM

6. Plaintiff filed a Notice of Claim with the Comptroller of the City of New York on February 5, 2009, within 90 days of the incident complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

7. Plaintiff also filed a subsequent Notice of Claim on April 17, 2009, within 90 days of the dismissal of the criminal charges against him. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

PARTIES

8. Plaintiff LUDGER BALAN is a citizen and resident of the United States, and at all times relevant herein was a resident of the State of New York, County of Kings.

9. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is

authorized by law to maintain a police department and a fire department, which act as its agents in the areas of law enforcement and emergency medical care to members of the public, and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and fire department and the employment of police officers and emergency medical technicians as said risk attaches to the public consumers of the services provided by the New York City Police Department and New York City Fire Department.

10. Defendants COFRESI and JOHN DOES, are and were at all times relevant herein duly appointed and acting officers, servants, employees and agents of THE CITY OF NEW YORK and/or the New York City Police Department, a municipal agency of defendant THE CITY OF NEW YORK. Said individual defendants are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant THE CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. Defendants COFRESI and JOHN DOES are sued individually.

11. Defendants RICHARD ROES are and were at all times relevant herein duly appointed and acting supervisory officers, servants, employees and agents of THE CITY OF NEW YORK and/or the New York City Police Department, responsible for the training, retention, supervision, discipline and control of police officers under their command. Said individual defendants are and were at all times relevant herein acting under color of state law in

the course and scope of their duties and functions as supervisory officers, agents, servants, and employees of defendant THE CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. Defendants RICHARD ROES are sued individually.

STATEMENT OF FACTS

12. Plaintiff LUDGER BALAN is a community organizer in Brooklyn, NY, and works for an organization called the Urban Divers Estuary Conservancy, whose mission is, *inter alia*, to advocate for cleaner waterways in New York City and to educate the public about environmental issues.

13. On the night of November 13, 2008, Plaintiff was working setting up a community Thanksgiving festival in the schoolyard of Public School 15 in his neighborhood.

14. Plaintiff observed a police officer use excessive and improper force upon a young man in the vicinity of P.S. 15, and arrest the young man.

15. Plaintiff also heard that police officer tell the young man, in sum and substance, “you better show me some fuckin’ respect.”

16. Plaintiff observed the scene for a while, and had some conversations with a police officer who was at the scene.

17. Plaintiff a short while later made a comment to the young man’s family members, within earshot of police officers on the scene that, in sum and substance, if they had a grievance with the police they could contact a civil liberties organization.

18. A number of the police officers on the scene began to eyeball Plaintiff aggressively.

19. A while thereafter, some time shortly after midnight on November 14, 2008, as Plaintiff was riding his bicycle through the neighborhood heading eastbound on Sigourney Street, a car, with its headlights off, pulled up aggressively and dangerously closely behind Plaintiff, and screeched its tires directly behind Plaintiff.

20. The car pulled up aggressively and dangerously closely behind Plaintiff, screeching its tires directly behind Plaintiff, more than once, as Plaintiff rode his bicycle heading eastbound on Sigourney Street.

21. Sigourney Street is a two-way street, and Plaintiff was riding on the proper side of Sigourney Street, and was obeying traffic rules.

22. The road was completely deserted except for Plaintiff and this car, and there is no possibility that the car pulled up in that manner other than purposefully, in order to instill fear in Plaintiff.

23. The car then pulled up beside Plaintiff on Plaintiff's left as Plaintiff continued riding his bicycle, and the front seat JOHN DOE passenger opened the door to the car as the car was moving beside Plaintiff.

24. Plaintiff then saw a police uniform on the car's JOHN DOE passenger who had opened the door, and realized for the first time that it was the police.

25. The JOHN DOE police officer in the passenger seat told Plaintiff to pull his bicycle over and stop.

26. The unmarked car had not at any point displayed any lights or sirens in order to

make known that it was the police.

27. Plaintiff then stopped on his bicycle, and was straddling his bicycle.

28. The two JOHN DOE police officers, one of whom on information and belief was Defendant COFRESI, got out of their car and began to act very aggressively towards Plaintiff.

29. The police officers aggressively accused Plaintiff of riding his bicycle the wrong direction down the street, and aggressively asked him what his hurry was and where he was going.

30. Plaintiff responded, in sum and substance, “what’s with all the aggression – it’s just like the shit I witnessed at P.S. 15 earlier.”

31. When Plaintiff mentioned the prior incident at Public School 15, Defendant COFRESI exploded at Plaintiff, in sum and substance, “Do you know what the kid did?”

32. It was clear to Plaintiff that Defendant COFRESI had been at the prior incident at P.S. 15, or was otherwise aware of the incident, and that his treatment by Defendant COFRESI was in retaliation for Plaintiff’s presence, observation and speech during that incident.

33. The police continued to aggressively question Plaintiff about what he was doing and where he was going.

34. Plaintiff explained that he was heading to the Red Hook Community Farm to check that the gate was properly locked.

35. The Urban Divers Estuary Conservancy has an inter-organizational relationship with the Red Hook Community Farm.

36. Plaintiff was concerned that there was a chance the Farm may not have been secured properly, since Plaintiff had gone to the Farm earlier to get pumpkins to line the

boundaries of the potato-sack races at the Thanksgiving festival at P.S. 15, and Plaintiff did not remember if he had locked the gate.

37. Defendant COFRESI told Plaintiff, in sum and substance, that he was taking Plaintiff in.

38. The other JOHN DOE officer told Plaintiff, in sum and substance, that he was being arrested because he did not keep his mouth shut.

39. Defendant COFRESI asked for Plaintiff's identification.

40. Plaintiff did not have any identification on him.

41. Plaintiff was handcuffed by Defendant COFRESI and his JOHN DOE partner and placed in the back of the unmarked police car.

42. The handcuffs were placed upon Plaintiff with an unnecessary, excessive, and punitive tightness.

43. Plaintiff was taken to the New York City Police Department 76th Precinct and placed in a cell.

44. While Plaintiff was at the 76th Precinct other officers who had been present at the previous P.S. 15 incident saw Plaintiff and laughed.

45. One of these other officers said to Defendant COFRESI, in sum and substance, "hey, that's the guy" with reference to Plaintiff.

46. Another of these officers asked Defendant COFRESI, in sum and substance, "what did you get him on?"

47. The police at the precinct told Plaintiff that if he didn't get someone to bring his identification to the precinct he would be taken "downtown."

48. Plaintiff called his wife, who was in the Bronx at the time.

49. Plaintiff's wife arrived at the precinct hours later with Plaintiff's identification.

50. After the arrival of Plaintiff's wife, Defendant COFRESI issued two summonses to Plaintiff and Plaintiff was released from police custody.

51. One summons accused Plaintiff of violation of § 1127 of the Vehicle and Traffic Law, "drive on the wrong way street" at the intersection of "Columbia and Sigourney St.," and was returnable to the traffic violations bureau.

52. The other summons charged Plaintiff with violation of Penal Law § 240.20 (3), Disorderly Conduct, for alleged "Dis/con Obscene Lang/Gestures." The factual accusations sworn to by Defendant COFRESI state:

@ T/P/O [time and place of occurrence] A/O [arresting officer] stop Deft for going the wrong way street upon stop Deft start to yell and curse causing alarm. A/O try to calm Deft down Deft still was yelling and cursing.

53. Plaintiff never yelled at any point during any of his interactions with the police.

54. Plaintiff's use of the word "shit" to the police is speech protected by the First Amendment under long clearly-established law.

55. Plaintiff could not possibly have caused public alarm, because the street was completely desolate except for Plaintiff and the two Defendant Police Officers who stopped him and arrested him.

56. Plaintiff pled not guilty to both summonses.

57. After a few appearances at the Traffic Violations Bureau the traffic violation charge against Plaintiff was dismissed on March 24, 2009.

58. After approximately six to eight court appearances in Criminal Court, on April 9,

2009 the disorderly conduct charge against Plaintiff was also dismissed.

FIRST CLAIM

**DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. §1983**

59. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

60. By their conduct and actions in targeting, harassing, falsely arresting, maliciously prosecuting, abusing process against, selectively enforcing the law against, violating the rights to equal protection of law of, violating the rights to substantive due process of, assaulting and battering, violating and retaliating for the exercise of rights to free speech and association of, inflicting emotional distress upon, failing to intercede on behalf of, and fabricating false evidence / a false account surrounding the November 14, 2008 incident regarding, Plaintiff, POLICE OFFICER COFRESI and JOHN DOES, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, including its First, Fourth and Fourteenth amendments.

61. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM

**SUPERVISORY LIABILITY FOR DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. §1983**

62. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

63. By failing to remedy the wrongs committed by their subordinates, and in failing to properly train, screen, supervise, or discipline their subordinates, supervisory officers RICHARD ROES and PAUL POES caused damage and injury in violation of plaintiff's rights guaranteed under 42 U.S.C. §1983, and the United States Constitution, including its First, Fourth and Fourteenth amendments.

64. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM

LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS

65. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

66. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, and through the individual defendants had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

67. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, and through the individual defendants, had de facto policies, practices, customs, and usages of failing to properly train, screen, supervise, or

discipline employees, police officers, and emergency medical technicians, and of failing to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline said defendants. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

68. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, and through the individual defendants, had de facto policies, practices, customs, and usages of encouraging and/or tacitly sanctioning the violation of and/or retaliation for individuals' exercise of free speech and association, including individuals' exercise of the right to observe and comment upon the activities of the police. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

69. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM

RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK FOR STATE LAW VIOLATIONS

70. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

71. The conduct of the individual defendants alleged herein, occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as New York City police officers / supervisors, and/or while they were acting as agents and employees of defendant THE CITY OF NEW YORK, and, as a result, defendant THE CITY OF

NEW YORK is liable to plaintiff pursuant to the state common law doctrine of respondeat superior.

72. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM

ASSAULT AND BATTERY

73. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

74. By the actions described above, defendants did inflict assault and battery upon plaintiff. The acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

75. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

SIXTH CLAIM

FALSE ARREST and FALSE IMPRISONMENT

76. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

77. By the actions described above, defendants caused to be falsely arrested or falsely arrested plaintiff, without reasonable or probable cause, illegally and without a warrant, and

without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

78. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

SEVENTH CLAIM

MALICIOUS PROSECUTION

79. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

80. By the actions described above, defendants maliciously prosecuted plaintiff without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

81. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

EIGHTH CLAIM

INTENTIONAL and NEGLIGENCE INFLICTION OF EMOTIONAL DISTRESS

82. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

83. By the actions described above, defendants engaged in extreme and outrageous

conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff.

The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

84. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

NINTH CLAIM

ABUSE OF PROCESS

85. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

86. By the conduct and actions described above, defendants employed regularly issued process against plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff without economic or social excuse or justification, and the defendants were seeking a collateral advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the process. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

87. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

TENTH CLAIM

**VIOLATION OF AND RETALIATION FOR THE EXERCISE OF RIGHTS TO
FREE SPEECH AND ASSOCIATION**

88. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

89. By the actions described above, defendants violated the free speech and association rights of plaintiff and retaliated against plaintiff for the exercise of his rights to free speech and association. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

90. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

ELEVENTH CLAIM

NEGLIGENCE

91. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

92. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

93. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and

expenses, and was otherwise damaged and injured.

TWELFTH CLAIM

NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING

94. The plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

95. Defendants THE CITY OF NEW YORK negligently hired, screened, retained, supervised and trained the individual defendants. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

96. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

THIRTEENTH CLAIM

CONSTITUTIONAL TORT

97. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

98. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11 and 12 of the New York State Constitution.

99. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11 and 12 of the New York State Constitution, and appropriate to ensure full realization of Plaintiff's rights under those sections.

100. As a result of the foregoing, plaintiff was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, the plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empanelling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
February 10, 2010

_____/s/_____
JEFFREY A. ROTHMAN, Esq.
315 Broadway, Suite 200
New York, New York 10007
(212) 227-2980
Attorney for Plaintiff